

		Thus, the Court orders sanctions in the amount of \$2,221.65 (9 hours at \$240 an hour + \$61.65 filing fee) against Plaintiff Marisol Maldonado, to be paid within 20 days. <i>Defendant to provide notice.</i>
107	Mandaric vs. Zhu, 25-01535555	<i>Off-calendar.</i>
108	James Bay Resources Limited vs. Lockett & Horwitz, 23-01313001	Defendant, Lockett & Horwitz, Inc., fka as Horwitz & Armstrong, PLC ("L&H") moves for an order granting summary judgment against Plaintiffs, James Bay Resources Limited ("James Bay") and Stephen Shefsky ("Shefsky") (collectively, "Plaintiffs") as to the Second Amended Complaint ("SAC"). Alternatively, L&H moves for summary adjudication of the first cause of action (Issue No. 1), the second cause of action (Issue Nos. 2 and 3), the third cause of action (Issue No. 4), and all causes of action on the basis that they are all fail as they were raised after the expiration of the statute of limitations (Issue No. 5). Initially, L&H filed and served original moving papers on March 6, 2026. The original motion sought only summary judgment. (ROA 189.) The original Separate Statement of Undisputed Facts consists of 30 facts in support of summary judgment only. (ROA 181.) Thereafter, on May 5, 2026, L&H filed an Amended Notice of Motion and Motion which moved for summary judgment as in the original motion, but also moved, in the alternative, for summary adjudication on five issues. (ROA 231.) In support of the Amended Notice of Motion and Motion, L&H filed an Amended Separate Statement of Undisputed Facts which added the five issues and the asserted undisputed material facts for each of these issues. (ROA 229.) The Amended Motion is considered. <i>Request for Continuance</i> Plaintiffs contend that the instant Amended Motion for Summary Judgment is premature and that the motion should be denied or continued under Code of Civil Procedure section 437c(h) because L&H has failed to respond substantively to discovery propounded on it on May 23, 2025, and September 17, 2025. The reply does not address this argument. "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." (Code Civ. Proc. § 437c(h).)